

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT’S MOTION FOR EXPEDITED RULING, REDUCTION OF
RESPONSE TIME, AND TO PRECLUDE FURTHER DELAY BY NON-CURATIVE
SUPPLEMENTAL PRODUCTIONS**

Complainant FormuKleen, Inc., by and through its representative, submits this Motion regarding Respondent Top Shipping Systems Corp.’s latest filing titled Respondent’s Reply to Complainant’s Response to Notice of Continued Production, filed on May 20, 2026, and Respondent’s latest purported supplemental production.

Pursuant to 46 C.F.R. § 502.102(a), Complainant requests expedited consideration and reduction of any response time applicable to this Motion. Good cause exists because Respondent is using serial non-curative notices, rolling productions, and repetitive filings to delay adjudication of discovery issues already fully presented to the Presiding Officer. Requiring another full response cycle under 46 C.F.R. § 502.71(b) would reward the same delay tactic this Motion seeks to stop.

Respondent’s latest production does not cure Complainant’s pending Motion to Enforce. It does not moot the Motion to Enforce. It does not resolve the discovery issues already before

the Presiding Officer. It is another last-minute filing and production that consumes time without curing the actual deficiencies.

Complainant has reviewed Respondent's latest production of May 20 sufficiently to determine that it does not cure the specific enforcement issues raised in Complainant's Motion to Enforce. Respondent has again produced materials that largely consist of documents Complainant already had, documents on which FormuKleen was already copied, shipment documents, delivery orders, warehouse receipts, invoices, credit memos, and related backup. Marking pages with RX numbers does not convert that production into compliance.

The problem is not that Respondent can keep producing paper. The problem is that Respondent still has not cured the specific issues before the Presiding Officer.

Respondent still has not produced the missing third-party communications necessary to determine what TSS communicated with carriers, terminals, warehouses, truckers, vendors, or other third parties outside FormuKleen concerning the handling, charges, routing, storage, release, delivery, and payment issues for the two subject containers, CHSU4047424 and BSIU8431017.

Respondent still has not cured the challenged redactions. Respondent still has not produced the disputed redacted material unredacted under the Protective Order or submitted it for in camera review. Respondent still has not cured the RFP No. 7 issues concerning underlying charge, payment, advance, storage, drayage, terminal, warehousing, duty, and port-related records. Respondent still has not provided a meaningful explanation tying its latest production to the deficiencies raised in the Motion to Enforce.

Respondent's latest filing claims it produced "third-party communications regarding the two subject shipments" in good faith and "to the best of TSS's ability." It did not. Respondent again produced materials that largely consist of communications involving FormuKleen, documents already available to Complainant, invoices, delivery orders, warehouse receipts, and shipment backup. That is not the missing third-party communication record Complainant sought enforcement over. Respondent still has not produced the communications showing what TSS communicated with carriers, terminals, warehouses, truckers, vendors, or other third parties outside FormuKleen regarding the handling, charges, routing, storage, release, delivery, and payment issues for CHSU4047424 and BSIU8431017. Respondent cannot cure noncompliance by labeling another inadequate production "third-party communications."

Respondent is wasting Complainant's time and the Commission's time. Each new filing follows the same pattern: Respondent claims good faith, produces more material, invokes hardship or lack of counsel, and still does not cure the actual enforcement issues. This continuing cycle is prejudicial because it rewards Respondent's delay and forces Complainant to chase non-curative filings and sift through duplicative, already-known, or only marginally responsive materials while Respondent avoids the specific relief requested in the Motion to Enforce.

The prejudice is not that Complainant needs a longer discovery period. Complainant does not. The prejudice is that Respondent is being permitted to convert noncompliance into process. Respondent's rolling, deficient, and non-curative productions force Complainant to spend time and resources reviewing material that does not cure the Motion to Enforce, responding to serial notices that do not resolve the dispute, and repeatedly explaining the same deficiencies while Respondent avoids a ruling on the pending enforcement motion. Allowing this cycle to continue

would reward the very delay and noncompliance for which Complainant seeks enforcement and sanctions.

Complainant does not intend to continue litigating Respondent's serial non-curative notices as though each new filing resets the enforcement dispute. The issues are fully presented. Respondent's latest filings and productions do not cure the Motion to Enforce, and further responses to repetitive notices would only compound the prejudice to Complainant and further delay adjudication.

Complainant therefore requests that the Presiding Officer rule on the pending motions and direct that Respondent may not file any further notices, replies, supplemental compliance statements, or rolling-production updates concerning the discovery issues already raised in Complainant's Motion to Enforce absent prior leave of the Presiding Officer. Respondent has already responded to the Motion to Enforce, requested additional time, filed a notice of continued production, and filed a reply concerning its latest production. The issue is fully presented. Further unilateral filings by Respondent concerning the same alleged "supplemental compliance" should not be accepted as a basis to delay adjudication, should not require further response by Complainant, and should not be treated as curing the pending Motion to Enforce unless the Presiding Officer orders otherwise.

Respondent's latest conduct further supports Complainant's pending request for sanctions. Respondent has already requested an extension of time, and the Presiding Officer has already made clear that counsel withdrawal does not automatically justify delay. Respondent is now attempting to accomplish indirectly what it has not been entitled to obtain directly: delay adjudication of the Motion to Enforce, delay actual compelled production, delay review of

redactions, and run out the discovery period through non-curative filings and rolling document dumps. This is not a good-faith cure. It is a delay tactic. Respondent's conduct reinforces that sanctions and adverse-inference relief are warranted because Respondent is not merely failing to comply; Respondent is using purported "supplemental compliance" as a mechanism to postpone compliance, confuse the record, and avoid a ruling.

Complainant has satisfied the duty to confer under 46 C.F.R. § 502.71. The discovery issues addressed in this Motion are not new. They have been the subject of repeated written conferrals, motion practice, orders, supplemental productions, redaction disputes, search-methodology disputes, Bates-range disputes, and extension disputes for months. Complainant conferred with Respondent's prior counsel and successor counsel regarding these issues before filing the Motion to Enforce, opposed Respondent's request for additional time, and responded to Respondent's purported supplemental production. Respondent's latest filing confirms that the dispute remains unresolved: Respondent continues to characterize its latest production as compliance, while Complainant maintains that the production does not cure the specific RFP No. 4, RFP No. 7, redaction, Bates-range, and search-methodology deficiencies before the Presiding Officer. Further conferral would not narrow the dispute and would only create additional delay.

The issue before the Presiding Officer is ready for decision. Respondent has filed a response. Complainant has opposed Respondent's request for more time. Respondent has now filed another notice and production that still does not cure the pending enforcement issues.

Complainant respectfully requests that the Presiding Officer promptly rule on Complainant's Motion to Enforce and Respondent's request for extension of time. Respondent's

latest production does not justify delay, does not cure the Motion to Enforce, and does not eliminate the need for enforcement relief.

Complainant further requests that the Presiding Officer make clear that additional notices of purported supplemental production shall not delay adjudication of the pending Motion to Enforce or Respondent's request for extension of time, and that Respondent may not continue filing non-curative notices or making rolling productions as a substitute for compliance with the April 1, 2026 Order.

Complainant further requests that the Presiding Officer require Respondent to comply with the April 1, 2026 Order, cure the RFP No. 4 and RFP No. 7 deficiencies, produce or submit disputed redacted materials for in camera review, grant the enforcement and sanctions relief requested in Complainant's Motion to Enforce, and reduce any response time applicable to this Motion so that Respondent cannot use another response period to continue the same delay cycle.

Respectfully submitted,

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Signature:  _____

Date: 05/21/2026

CERTIFICATE OF SERVICE

I certify that on May 21, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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